IN THE CIRCUIT COURT FOR BALTIMORE CITY, MARYLAND

STATE OF MARYLAND,	*	
Plaintiff,	*	
v.	*	**Case No. 24-CR-004512**
JOHN A. SMITH,	*	
Defendant.	*	

* * * * * * * * * * * * * * *

DEPOSITION OF STEPHEN MICHAEL SMITH

(Taken to perpetuate testimony pursuant to Maryland Rule 4-261)

Baltimore, Maryland

Thursday, May 30, 2024

10:04 a.m.

Taken at: Office of the State's Attorney for Baltimore City

120 E. Baltimore Street, Baltimore, MD 21202, 9th Floor

Reported by: Denise Harmon, RPR, Notary Public

Harmon Court Reporting, LLC

APPEARANCES

On behalf of the State of Maryland:

MARCUS WHITFIELD, ESQUIRE
Assistant State's Attorney
Office of the State's Attorney for Baltimore City
120 E. Baltimore Street, Baltimore, MD 21202
(410) 555-0142

On behalf of the Defendant:

LAUREN OKAFOR, ESQUIRE
Okafor & Reyes LLP
201 N. Charles Street, Suite 1400, Baltimore, MD 21201
(410) 555-0177

Also present:

John A. Smith, Defendant
Detective Brian Kowalski, Baltimore Police Department

Court Reporter:

Denise Harmon, RPR, Harmon Court Reporting, LLC

I N D E X

WITNESS: STEPHEN MICHAEL SMITH

EXAMINATION	PAGE
By Mr. Whitfield (direct)	4
By Ms. Okafor (cross)	13
By Mr. Whitfield (redirect)	18

EXHIBITS	MARKED
State's 1 - Door-access log (ACME-000212)	10
State's 2 - Photograph, silver Ford F-150	8
State's 3 - Account-opening file (CFB-000003)	11

(Original exhibits retained by the Office of the State's Attorney.)

PROCEEDINGS

THE REPORTER: We are on the record at 10:04 a.m. on May 30, 2024. Will counsel please state their appearances for the record?

MR. WHITFIELD: Marcus Whitfield for the State.

MS. OKAFOR: Lauren Okafor for the defendant, John Smith, who is present.

(The witness was sworn by the reporter.)

STEPHEN MICHAEL SMITH, having been first duly sworn, testified as follows:

DIRECT EXAMINATION

BY MR. WHITFIELD:

Q. Good morning. Please state your full name for the record.

A. Stephen Michael Smith.

Q. And your current address?

A. 3306 Linden Court, Apartment 2B, Towson, Maryland 21204. Until the end of June, anyway.

Q. Where are you moving at the end of June?

A. Stuttgart, Germany. My company is sending me over for two years.

Q. That's why we're here today, to preserve your testimony in case you're not available for trial. Do you understand that?

A. I do.

Q. Mr. Smith, I'm going to ask you a series of questions. If you don't understand one, tell me and I will rephrase it. Fair?

A. Fair.

Q. You're the son of the defendant, John Smith?

A. Yes. He's my father.

Q. And your mother is Mary Smith?

A. Mary Elizabeth Smith, yes.

Q. Where do your parents live?

A. 1418 Elm Street, in Baltimore. I grew up in that house.

Q. Did you live there in May of 2024?

A. No. I moved out years ago. But I'm over there a lot, because my daughter stays with my parents when I'm traveling for work.

Q. What is your daughter's name?

A. Emily. Emily Rose.

MS. OKAFOR: Objection, and a request. She's seven years old. I'd ask that for the rest of the transcript we refer to her by her initials, E.S.

MR. WHITFIELD: No objection. We'll use E.S.

THE WITNESS: Sorry. I didn't know.

MS. OKAFOR: It's fine, Mr. Smith. You didn't do anything wrong.

BY MR. WHITFIELD:

Q. Who has custody of E.S.?

A. Her mom and I share it. Her mom is Kara Delaney. We were never married. E.S. is with Kara during the school week and with me on weekends, except when I travel.

Q. And when you travel, she stays at the Elm Street house?

A. Usually, yes. My mom picks her up from school.

Q. Was E.S. staying with your parents during the first week of May 2024?

A. Yes. I was in Cleveland Monday through Thursday. I got back Friday afternoon.

Q. Friday being May 3rd?

A. Yes.

Q. Let's talk about your work history. Have you ever been employed by Acme Logistics?

A. Yes. In 2022, for about seven months. I was a temp loader on the night shift, then they hired me on.

Q. At which facility?

A. The warehouse on Holabird Avenue. The same one my dad runs. Ran.

Q. How did you get that job?

A. My dad told me they needed people. I was between jobs.

Q. Who was your supervisor there?

A. Will Marsh trained me. Will was the shift supervisor on nights. Above him was my dad, but my dad worked days.

Q. When you say Will, you mean William Marsh?

A. Yes. Everybody calls him Will.

Q. How did you get along with Mr. Marsh?

A. Fine. He's a by-the-book guy. He will tell you if you parked a forklift crooked.

Q. How did your father get along with Mr. Marsh?

MS. OKAFOR: Objection. Foundation.

Q. If you know.

A. They were fine until the promotion thing. Will wanted the operations job and they gave it to my dad instead, back in 2019. After that Will was kind of cold to him.

Q. Did your father ever talk to you about Mr. Marsh?

A. Sometimes. He'd say Will was gunning for him. I figured that was just work stuff. Everybody at the warehouse calls my dad Johnny, and Will was the only one who called him John.

Q. Why did you leave Acme?

A. I got the job I have now, doing logistics software. Better hours.

Q. When you left, did you turn in your access badge?

A. Yes. They deactivated it. I remember because I had to sign a form.

Q. While you worked at Acme, did you learn where the operations office was?

A. Sure. Second floor, up the back stairs from the dock. Everybody knows where it is.

Q. And the rear dock door, Door D-4?

A. I don't know the numbers. There's a back door by the trash compactor that the night crew uses.

Q. Did you know a security guard named Darnell Price?

A. A little. Darnell was one of the guards when I worked there. Nice guy. I heard he got hurt. I'm sorry about that.

Q. How did you hear that Mr. Price had been hurt?

A. My dad told me. The Monday after, I think. He said the police wanted to talk to him.

Q. I want to turn to Friday, May 3, 2024. Where were you that evening?

A. At my parents' house. I drove over after work to have dinner and see E.S.

Q. What time did you arrive?

A. Around six-thirty.

Q. Who was at the house?

A. My mom, my dad, E.S., and me.

Q. How did you get there?

A. I drove my own car. A blue Civic.

Q. Where did you park?

A. On the street, in front of Mrs. Chen's house. My dad's truck was in the driveway and my mom's Honda was behind it.

Q. Who is Mrs. Chen?

A. May Chen. She lives next door, at 1420 Elm. She's lived there since I was a kid.

Q. Describe your father's truck.

A. Silver Ford F-150. A 2019, I think.

MR. WHITFIELD: I'm going to have this marked as State's Exhibit 2.

(State's Exhibit No. 2 was marked for identification.)

Q. Showing you what's been marked State's Exhibit 2. Do you recognize it?

A. That's my dad's truck. That's the driveway at Elm.

Q. What happened after dinner?

A. We ate around seven. My mom went upstairs early, she'd been feeling run down. Around nine-thirty E.S. said her ear hurt and she felt hot. My dad took her temperature and it was a hundred and three.

Q. What did your father do?

A. He said he was taking her to the urgent care on Conkling Street, the Harbor Pediatric place. He's the one who usually handles that stuff. He took my mom's Honda because that's where the car seat is.

Q. What time did he leave?

A. Maybe quarter to ten. A little before.

Q. Did you go with them?

A. No. I stayed at the house in case my mom needed anything.

Q. Did you stay at the house the whole time your father was gone?

A. No.

Q. Where did you go?

A. I took my dad's truck out for a while. I'd had an argument on the phone with Kara and I needed to drive around and clear my head.

Q. Why did you take your father's truck rather than your own car?

A. My car was blocked in on the street by a delivery van, and the truck keys were right there on the hook. I've driven that truck a hundred times.

Q. What time did you leave in the truck?

A. Right around ten. Maybe five after.

Q. Where did you go?

A. I drove up Harford Road to a gas station and got a coffee. Then I just drove. Loch Raven, around the reservoir. I wasn't paying attention to the time.

Q. Did you drive to the Acme warehouse on Holabird Avenue?

A. No.

Q. Did you drive anywhere near Holabird Avenue?

A. No. That's the opposite direction. I was north the whole time.

Q. Do you have a receipt from the gas station?

A. I paid cash. I didn't keep it.

Q. Did anyone see you while you were driving around?

A. The guy at the gas station, I guess. I don't know his name.

Q. What were you wearing that night?

A. Jeans, a dark Carhartt jacket, boots. Probably my Orioles hat.

Q. Do you wear an Orioles cap often?

A. Most days. So does my dad. So does half of Baltimore.

Q. What time did you return to 1418 Elm Street?

A. Around quarter to twelve. My dad and E.S. were already home. The Honda

was back in the driveway.

Q. Where did you park the truck?

A. In the driveway, where it was. Then I went in the side door.

Q. Did you see anyone outside when you came back?

A. I think Mrs. Chen's porch light was on. I didn't see her. If she says she saw Mr. Smith get out of the truck, I mean, that was probably me. We're built about the same.

Q. How tall are you?

A. Five eleven. About two-forty.

Q. And your father?

A. Five ten, maybe. Heavier than he should be. He'd tell you the same thing.

Q. When you took the truck keys off the hook, what else was on that hook?

A. My mom's keys, and my dad's work lanyard.

Q. The lanyard with his Acme badge?

A. Yes. He hangs it there when he comes home.

Q. Was the lanyard on the hook when you left at ten?

A. I think so. I'm not a hundred percent.

Q. Was it on the hook when you came back?

A. I didn't look. I didn't have any reason to look.

Q. Did you take your father's badge that night?

A. No.

Q. Did you ever use your father's badge, at any time?

A. No. Never.

MR. WHITFIELD: Let's mark this as State's 1.

(State's Exhibit No. 1 was marked for identification.)

Q. This is a door-access log produced by Acme, Bates number ACME-000212. It shows badge A-20417 used at Door D-4 at 10:37 p.m. on May 3. Do you see that?

A. I see it.

Q. Do you know whose badge number that is?

A. I assume it's my dad's. I don't know his number.

Q. At 10:37 p.m. on May 3, where was your father?

MS. OKAFOR: Objection. Calls for speculation. He's testified he wasn't with his father.

Q. You can answer if you know.

A. He was at the urgent care with E.S. That's what he told me, and that's when they were gone.

Q. Did your father ever talk to you about a company called Patapsco Freight Services?

A. No. I'd never heard of it until the detective called.

Q. Do you know whether your parents bank at Chesapeake Federal Bank?

A. They do. The branch on Eastern Avenue. They've had accounts there forever.

Q. Have you ever been inside that branch?

A. A couple times with my mom, when I was younger. Not recently.

Q. Do you know a teller there named Rosa Delgado?

A. No.

MR. WHITFIELD: State's 3.

(State's Exhibit No. 3 was marked for identification.)

Q. State's 3 is an account-opening file from Chesapeake Federal, Bates CFB-000003 through CFB-000009. On the third page there's a signature over the name John A. Smith. Do you recognize that signature?

A. It looks like his. Kind of. My dad's J is bigger, usually. I couldn't swear to it.

Q. The application lists a Social Security number of 212-48-6789. Is that your father's number?

MS. OKAFOR: Objection. And I'd ask the reporter to note that the parties will file a redacted version of this transcript. Full Social Security numbers shouldn't be in a public filing.

MR. WHITFIELD: Agreed. We'll redact for the public file.

Q. Mr. Smith, do you know your father's Social Security number?

A. No. I know the last four is 6789, because he uses it as a PIN for everything. He'll kill me for saying that.

Q. Does anyone else in your family know his full number?

A. My mom, I'm sure. She does all the taxes.

Q. For completeness, what is your own Social Security number?

MS. OKAFOR: Objection. Relevance.

MR. WHITFIELD: It goes to the bank records, counsel. There's a second application in the file.

MS. OKAFOR: Then show him the document. I'll let him answer, subject to the redaction agreement.

A. 219-63-4102.

Q. Have you ever opened a bank account at Chesapeake Federal using your father's information?

A. No. Absolutely not.

Q. Have you ever opened any account in the name of Patapsco Freight?

A. No.

Q. Did your father ever ask you to make cash withdrawals for him?

A. No.

Q. Did your mother?

A. No. My mom doesn't even use the ATM.

Q. After May 3, did you discuss that night with your father?

A. Yes. He asked if I'd taken the truck. I said yes. He said the police might want to talk to me.

Q. Did he ask you to say anything in particular?

A. He said to tell the truth. That's it.

Q. Did you talk to May Chen after that night?

A. I waved to her once when I picked E.S. up. She looked at me kind of funny. We didn't talk about it.

MR. WHITFIELD: I don't have anything further at this time. I'll reserve the balance for redirect.

MS. OKAFOR: Can we take five minutes?

MR. WHITFIELD: Sure.

(A recess was taken from 11:02 a.m. to 11:10 a.m.)

CROSS-EXAMINATION

BY MS. OKAFOR:

Q. Mr. Smith, my name is Lauren Okafor. I represent your father. I'm going to refer to him as your father or as Mr. Smith senior so the record is clear. Okay?

A. Okay.

Q. You told Mr. Whitfield you left the house in the truck at about ten o'clock. How do you know the time?

A. Because I was on the phone with Kara and I looked at the call when I hung up. It was right before ten.

Q. If I told you that the phone records show your call with Ms. Delaney ended at 9:58 p.m., would that be consistent?

A. Yes.

Q. So you got in the truck within a few minutes after 9:58?

A. Yes.

Q. And your father had already left with E.S. in the Honda?

A. Yes. Ten, fifteen minutes before that.

Q. You didn't see your father again until you came home around 11:45?

A. Right.

Q. So from about 9:45 until 11:45, you don't personally know where your father was?

A. Not personally. He was at the urgent care.

Q. That's what he told you?

A. Yes. And E.S. had a bandage on her arm from where they did a blood test, and she had a bottle of the pink medicine.

Q. Let's talk about the drive. You were gone from about ten to about 11:45. That's an hour and forty-five minutes?

A. About that.

Q. And the only stop you can tell us about is a gas station on Harford Road?

A. Yes.

Q. You told the detective on May 7 that you would give a statement only with a lawyer present. Do you remember that?

A. Yes. My dad's lawyer, you, told me that was smart.

MS. OKAFOR: For the record, I don't represent the witness, and I advised him to consult his own counsel.

THE WITNESS: That's right. Sorry.

Q. Did you consult a lawyer?

A. I talked to one on the phone. I decided I didn't need one. I didn't do anything.

Q. Mr. Smith, you worked nights at the Holabird warehouse for seven months?

A. Yes.

Q. So you know that the night crew leaves by six on Fridays?

A. They did when I was there. Friday nights were dead.

Q. And you know there's one guard on Friday nights?

A. I knew that back then. I don't know what they do now.

Q. You knew Mr. Price was one of the guards?

A. Yes, but I haven't seen Darnell in two years.

Q. You knew the back stairs led from the dock to the operations office?

A. Yes. I said that.

Q. And you know your father keeps his badge on that lanyard, on the hook by the kitchen door?

A. Everybody in the family knows that.

Q. Your own Acme badge was deactivated when you left in 2022?

A. Yes.

Q. So if you wanted to get into that warehouse in 2024, you would need someone else's badge?

MR. WHITFIELD: Objection. Argumentative.

MS. OKAFOR: I'll rephrase.

Q. Your own badge would not have opened Door D-4 in May 2024, correct?

A. Correct. But I didn't try to open anything.

Q. You told us you own an Orioles cap. Were you wearing it that night?

A. I said probably. I'm usually wearing it.

Q. And you're five eleven, about two-forty?

A. Yes.

Q. Mr. Price described the man in the office as heavyset, around five ten, in a dark cap and a dark jacket. You were wearing a dark jacket?

MR. WHITFIELD: Objection. Counsel is testifying about a description that's not in evidence in this deposition.

MS. OKAFOR: It's in the police report the State produced.

A. I was wearing a dark jacket. So was everybody. It was cold.

MS. OKAFOR: May I approach the witness?

MR. WHITFIELD: Go ahead.

Q. I'm showing you page four of State's 3, the signature card for the Patapsco account. It lists a joint signer, Mary E. Smith, Social Security number ***-**-4417. Do you know whether 4417 are the last four digits of your mother's number?

A. I don't know my mom's number. I really don't.

Q. Would your mother have signed anything to open a business account?

MR. WHITFIELD: Objection. Speculation.

A. I don't think she'd sign anything my dad didn't read to her first. She doesn't do business stuff.

Q. Let's talk about Mr. Marsh. You said Will Marsh wanted your father's job?

A. That's what my dad said. And Will said it himself once at a cookout. He'd had a few beers.

Q. What did Mr. Marsh say?

A. Something like, 'One of these days Johnny will slip up and I'll be right there.' Everybody laughed. I didn't think it was funny.

Q. When was that cookout?

A. Summer of 2022. At the warehouse. The company does one every July.

Q. Did you ever see Mr. Marsh near your father's office after hours?

A. I mean, he worked nights. He was everywhere after hours. That was his job.

Q. Will you agree that Mr. Marsh had keys and a badge to that office?

MR. WHITFIELD: Objection. Foundation.

A. He had to. He was the night supervisor. Unless they changed it.

Q. Turning to Ms. Chen. You've known May Chen most of your life?

A. Since I was eight or nine. She used to babysit me sometimes.

Q. Does Ms. Chen have any trouble with her eyesight, to your knowledge?

A. She wears glasses. Thick ones. I don't know about at night.

Q. When you came home at 11:45, did you walk from the truck to the side door?

A. Yes.

Q. The same route Ms. Chen described someone she called Mr. Smith taking?

MR. WHITFIELD: Objection. Mischaracterizes. The witness hasn't seen her statement.

Q. Let me ask it this way. Is there any other way into the house from the driveway, other than the side door?

A. No. The front door's on the other side, on Elm Street.

Q. And when you got out of the truck, you were wearing the cap and the dark jacket?

A. Probably. Yes.

Q. Mr. Smith, did you enter the Acme warehouse on the night of May 3, 2024?

A. No. I swear I didn't.

Q. Did you push Darnell Price down the stairs?

A. No. I would never hurt Darnell.

MS. OKAFOR: Nothing further.

REDIRECT EXAMINATION

BY MR. WHITFIELD:

Q. Mr. Smith, just a few more. You said you were on the phone with Ms. Delaney until about 9:58?

A. Yes.

Q. Was E.S. still at the house when you started that call?

A. She was in the living room with my dad, lying on the couch. He was getting her shoes on.

Q. So you saw your father and E.S. leave the house together?

A. I saw them go out the side door. I heard the Honda start.

Q. You didn't see which direction the Honda went?

A. No. I was on the phone.

Q. When you came home, did your father say anything about the urgent care?

A. He said they gave her antibiotics and it was an ear infection. He said the waiting room was packed.

Q. Did he say what time they were seen by a doctor?

A. No. Just that it took forever.

Q. Did your father seem out of breath, or hurt, or upset?

A. He seemed tired. It was midnight. He's sixty-one.

Q. Was he wearing an Orioles cap?

A. I don't remember. I really don't.

Q. Last question. When the Baltimore Police Department detective called you

on May 7, did you tell him you had taken the truck?

A. Not on that call. I said I'd talk with a lawyer. I told my dad's lawyer later. And I'm telling you now.

MR. WHITFIELD: Thank you, Mr. Smith. Nothing further.

MS. OKAFOR: Nothing further from the defense.

THE REPORTER: Will the witness read and sign?

MS. OKAFOR: He'll read and sign. Please send the transcript to my office and I'll forward it.

MR. WHITFIELD: And for the record, the State's copy should be the redacted version, with the minor identified as E.S. only.

(Whereupon, at 11:58 a.m., the deposition was concluded. Signature reserved.)

ACKNOWLEDGMENT OF DEPONENT

I, Stephen Michael Smith, do hereby certify that I have read the foregoing transcript of my testimony taken on May 30, 2024, and that it is a true and accurate record of my testimony, with the exception of any corrections noted on the errata sheet below.

PAGE	LINE	CORRECTION AND REASON

_____

STEPHEN MICHAEL SMITH

Subscribed and sworn before me this ____ day of _____, 2024.

_____ Notary Public

CERTIFICATE OF COURT REPORTER

I, Denise Harmon, Registered Professional Reporter and Notary Public in and for the State of Maryland, do hereby certify that the witness, STEPHEN MICHAEL SMITH, was duly sworn by me; that the foregoing is a true and accurate transcript of the testimony given, reduced to typewriting under my supervision; and that I am neither counsel for, related to, nor employed by any of the parties to this action.

Pursuant to the agreement of counsel on the record, the public-filing version of this transcript shall redact Social Security numbers and identify the minor child by initials only.

WITNESS my hand and notarial seal this 4th day of June, 2024.

/s/ Denise Harmon
Denise Harmon, RPR, Notary Public
My commission expires: 11/30/2027
Harmon Court Reporting, LLC -- (410) 555-0199